TRUHOMES REALTY GROUP

COOPERATING BROKER COMPENSATION AGREEMENT WITH SELLER

THIS IS A LEGALLY BINDING CONTRACT. IF NOT FULLY UNDERSTOOD, WE RECOMMEND CONSULTING AN ATTORNEY BEFORE SIGNING.

PROPERTY ADDRESS:

_____

SELLER(S):

_____

BUYER(S):

_____

COOPERATING BROKER:

_____

AGENT OF COOPERATING BROKER:

_____

The COOPERATING BROKER is acting as a:

_____ BUYER'S AGENT: SELLER understands that COOPERATING BROKER is acting as a BUYER'S AGENT acting in the best interest of the BUYER(S), the COOPERATING BROKER is not representing SELLER. COOPERATING BROKER has been authorized by the BUYER to receive the cooperating compensation set forth below from the LISTING BROKER.

_____ BROKER'S AGENT: SELLER understands that the COOPERATING BROKER is acting as a BROKER'S AGENT acting in the best interest of the LISTING BROKER.

SELLER understands that this Contract is only a compensation agreement for selling SELLER'S Property to the aforementioned prospective BUYER. SELLER is not listing SELLER'S Property with COOPERATING BROKER. SELLER understands that SELLER can sell SELLER'S Property to other buyers even though this Contract has not expired. This agreement does not authorize COOPERATING BROKER to show the property to any other prospective BUYERS, nor obligate SELLER to pay compensation to COOPERATING BROKER, except in connection with a sale of the property to this BUYER. _____ PLEASE INITIAL:

COMPENSATION: SELLER understands that compensation is not set by law or any Realtor® association or MLS and that compensation is fully negotiable between the SELLER and the COOPERATING BROKER.

The undersigned SELLER agree(s) to pay to the undersigned COOPERATING BROKER, compensation in an amount equal to _____% of the sales price or $ _____ for the sale of the above described property shown to the BUYER(S). Such compensation shall be paid only if, as and when title passes, except for the willful default of the Seller.

Dispute Resolution:

a. Each party hereby waives the right to bring any lawsuit relating to any transaction covered by this Agreement and further waives the right to join, or be part of, any class action or any other legal action relating to claims arising from any such transaction.

b. The merits of any dispute arising under or in connection with this Agreement shall be determined before an arbitrator in the County of New York, Sate of New York, pursuant to the Commercial Arbitration Rules then in effect with the American Arbitration Association. Judgment Upon the Award rendered may be entered in any court of competent jurisdiction. Should the disputed amount not exceed the jurisdictional limit of the Civil Court of the City of New York, Small Claims Division, the parties may initiate an action in that forum.

c. Notwithstanding any provision to the contrary contained in this Agreement, if Broker is held to be liable for any matter arising from this Agreement, the maximum liability of Broker shall not exceed the aggregate amount received by Broker in connection with the transaction in question, not including filing or related administrative fees.

SELLER_____ Date:_____

SELLER_____ Date:_____

COOPERATING
BROKER_____Date:_____

The “EFFECTIVE DATE” of this Agreement shall be latest date entered above alongside the parties’ signatures.